

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)**

Present:

Mr. Justice Md. Shohrwardi

Criminal Appeal No. 3652 of 2014

Md. Alamgir

-versus-

The state and another

with

Criminal Appeal No. 3597 of 2014

Abdul Latif

-versus-

The state and another

with

Criminal Appeal No. 2688 of 2014

Golam Mostafa

-versus-

The state and another

Mr. Ahsanul Quayyum, Advocate with

Mr. Mohammad Mosaraf Hossain, Advocate

.... For the appellants in all the

appeals

Mr. S.M. Zahirul Islam, Advocate

.....for the respondent No. 2 in all the

appeals

Mr. Md. Monirul Islam, DAG with

M/s.Anjuman Ara Begum, AAG with

M/s. Kazi Shamsun Nahar, AAG with

Mr. Md. Shamim Khan, AAG

....for the State in all the
appeals.

Heard on 09.02.2023, 05.03.2023 and 06.03.2023

Judgment delivered on 07.03.2023

The above-mentioned appeals have arisen out of the impugned judgment and order passed by the trial court. Therefore, all appeals were heard analogously and disposed of by this single judgment.

The criminal appeals mentioned hereinabove are directed under section 10 (1) of the Criminal Law Amendment Act, 1958 (Act No. XL of 1958) challenging the legality of the judgment and order dated 06.05.2014 passed by Special Judge, Court No.3, Dhaka in Special Case No. 27 of 2010 arising out of Sutrapur Police Station Case No.34 dated 16.03.2010, G.R. No. 207 of 2010 convicting the accused-persons under Section 5(2) of the Prevention of Corruption Act, 1947 and sentencing accused Golam Mostafa to suffer rigorous imprisonment for 02 (two) years and to pay fine of Tk. 6,00,000 (six lac), in default, to suffer imprisonment for 02(two) months more, sentencing accused Md. Alamgir to pay fine of Tk. 50,000,(fifty thousand), in default, to suffer imprisonment for 01 (one) month and sentencing accused Abdul Latif to pay a fine of Tk. 25,000(twenty-five thousand), in default, to suffer imprisonment for 01(one) month and confiscating the fine amount in favour of the state.

The prosecution case in short, is that the accused-persons were discharging their duty at Dhaka Sadar Head Post Office as Assistant Post Master and Postal Operator to collect tax on motor vehicles between 13.04.2013 to 18.05.2004 and they collected the tax, total Tk. 7,86,598, on motor vehicles and as per Rules the collected tax is required to be deposited to the government exchequer but without depositing in the government exchequer they have misappropriated the said amount.

P.W. 1 Nur Hossain, Assistant Director, Anti-Corruption Commission took up the investigation of the case and after completing the investigation submitted the charge sheet against the accused-persons on 29.08.2010 under sections 409/420/477(Ka)/109 of the Penal Code, 1860 read with Section 5(2) of the Prevention of Corruption Act, 1947. The Senior Special Judge, Rajshahi took cognizance of the offence against the accused persons under sections 409/420/477(Ka)/109 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947. Thereafter, the case record was sent to the Special Judge, Court No. 3 Rajshahi for trial.

During the trial, the charge was framed under sections 409/420/477(Ka)/109 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 (Act No. II of 1947) against the accused persons and the charge was read over and explained in Bengali to the accused-persons present in Court who pleaded not guilty to the charge and claimed to be tried in accordance with law. The prosecution examined 13 witnesses to prove the charge against the accused-persons. After examination of the prosecution witnesses, the accused persons were examined under section 342 of the Code of Criminal Procedure, 1898 and they declined to examine any DW.

P.W. 1 Nur Hossain Khan is the Assistant Director of the Anti-Corruption Commission. He stated that based on the allegation made by the Assistant Post Master General, GPO, Dhaka he started the inquiry with prior approval of the authority and on perusal of the records and statement of witnesses, he found that the Assistant Post Master Golam Mostafa, Postal Operators Md. Alamgir and Abdul Latif in connivance with each other misappropriated total Tk. 7,86,598 and with prior approval of the Anti-Corruption Commission lodged the FIR against them. He proved the approval dated 04.03.2010 as exhibit 1. He proved the FIR as exhibit 2. During cross-examination, he stated that the time of occurrence is

mentioned as any time between 24.07.2002 to 14.04.2003. In the FIR the date of occurrence is mentioned between 13.04.2003 to 18.05.2004 and the dates of occurrence mentioned in the column of the FIR and the body of the FIR are not the same.

P.W. 2 Jesmin Akter is the Deputy Post Master General at Foreign Post Office, Dhaka. She stated that at the time of occurrence, she was discharging her duty as Deputy Post Master General at Foreign Post Office, Dhaka. The authority formed 5 member inquiry committee headed by her to inquire as to whether there was any irregularity at Dhaka Sadar Post Office as regards the realization of the tax on motor vehicles between 01.07.2002 to 23.09.2004. She proved the memo dated 14.02.2007 and 24.04.2007 as exhibit-3 and 4 respectively. There was an allegation against 8 employees of the Principal Post Office, Dhaka including the accused persons as regards the issuance of false tax tokens and false entries in the ledger and issuance of false duplicate copies. During the inquiry, it was found that the accused Golam Mostafa misappropriated Tk. 7,76,253, accused Alamir misappropriated Tk. 8,073 and accused Abdul Latif misappropriated Tk. 2,272.50 and thereafter she submitted the report. She proved the report dated 24.09.2007 as exhibit 5. During cross-examination, she stated that she could not say whether the misappropriated amount mentioned in the inquiry report and the FIR were the same or not. She affirmed that based on the inquiry made by her 03 FIR were lodged.

P.W. 3 Abul Kawsar is the Inspector (Trainer) at the Foreign Post Office, Dhaka. He stated that at the time of occurrence, he was posted as Inspector at Foreign Post Office, GPO, Dhaka. Based on the instruction of the Post Master General contained in memo dated 24.04.2007, 5 member inquiry committee was formed and he was a member of the said committee. He proved his signature on the report dated 24.09.2007 as exhibit- 5/1. During cross-examination, he affirmed that he stated to the investigating officer Nur Hossain that everything is written in the report.

P.W. 4 Taibur Reja Chowdhury is the Supervisor at Foreign Post Office, Dhaka (retired). He stated that at the time of occurrence, he was the Supervisor of the Foreign Post Office, GPO, Dhaka. A 5 member committee was formed to inquire as regards the irregularity in the realization of tax from the owners of the motor vehicles and he was a member of that committee. After the inquiry, the inquiry committee submitted a report on 24.09.2007. He proved his signature on the report as exhibit-5/2. During cross-examination, he stated that he compared the tax tokens with the number and owner of the car.

P.W. 5 Md. Rafique Bhuiyan was the Superintendent-in-Charge(Traffic) at the Foreign Post Office, Dhaka(retired). He stated that while he was posted at the Foreign Post Office, Dhaka, they submitted a report on 08.05.2008 to the higher authority and he was also a member of the 5-member inquiry committee formed to inquire as regards the realization of the tax on motor vehicles for the year 2002 to 2004. He proved his signature in the inquiry report as exhibit-5/3. During cross-examination, he stated that he could not identify the accused present amongst the persons in court and he had no knowledge about the investigation of this case.

P.W. 6 Shahadat Hossain is the former Deputy Post Master, Dhaka Sadar. He stated that in 2004, the Post Master, Dhaka formed a 5 member committee and he was the president of the committee. After completing the inquiry, he submitted a report to the Post Master, Dhaka Sadar. At the relevant time, Assistant Post Master Golam Mostafa and Counter Operator Alamgir misappropriated Tk. 2,28,838 and accordingly report was submitted. During cross-examination, he stated that the report was submitted to the Post Master. He could not remember the period of the investigation. He stated that in the report, the names of 02 accused persons were mentioned.

P.W. 7 Sunil Chandra Das is the Assistant Post Master(retired). He stated that on 02.06.2010 the investigating officer seized ACG-67 register Nos. 3879, 3897, 8733 and 3878. Accused Golam Mostafa misappropriated the tax mentioned in book No. 3879 Page Nos. 28, 32, 40, 42, 49, Book No. 3897 Page Nos. 27, 31, 39, 44, 77, Book No. 8733 Page Nos. 21, and 27. Accused Abdul Latif misappropriated tax mentioned in Book No. 3878 Page No. 61, Book No. 3879 Page No. 70, Book No. 3897 Page No. 78. Accused Alamgir misappropriated tax mentioned in Book No. 3897 Page Nos. 21, 30, 36, 38 and 80. Book No. 8733 Page Nos. 3 and 7 and subsequently they deposited the amount in the unclassified account. He proved the seizure list as exhibit-6 and his signature as exhibit-6/1. Based on the Zimmanama (exhibit-7) the investigating officer has given the custody of the 4 (four) register. He proved the counterpart of 4 (four) registers as material exhibit-I series. During cross-examination, he admitted that before lodging the FIR, the accused persons deposited the misappropriated amount and he had no knowledge about the case.

On recall, P.W. 7 Sunil Chandra Das stated that on 19.05.2010 at 11:00 am Nur Hossain Khan, Assistant Director, Anti-Corruption Commission, seized documents as regards misappropriation of tax on motor vehicles between 01.07.2002 to 30.09.07. The Deputy Post Master General made an inquiry in the above matter. 10(ten) ledgers (A V Tax) were seized, the copy of the tax tokens total 64 pages, and daily statement of work between 14.06.2002 to 10.05.2004 were seized. He proved the seizure list as exhibit-8 and his signature as exhibit-8/1. On 02.06.2010 at 13:50 the investigating officer seized Circular No. 26 dated 08.06.1999 issued as regards the realization of tax on motor vehicles by the DG, Post Office. He proved the seizure list dated 2.06.2010 as exhibit-9 and his signature as exhibit-9/1. He proved the Zimmanama (bond) dated 19.05.2010 as exhibit-10, and Zimmanama (bond) dated 02.06.2010 as exhibit-11. Those alamat are also the alamat of Divisional Special Case Nos. 19 of 2011 and 11 of

2011 for which it is not possible to produce those alams. During cross-examination, he stated that he could not say whether the Assistant Post Master joined on 14.04.2013 in the M.V.Tax section. He could not say whether the occurrence took place between 24.07.2002 to 14.04.2003. He could not say whether in the documents mentioned above, the misappropriated amount has been mentioned or not.

P.W. 8 Motiar Rahman is the Junior Accountant at Dhaka Sadar Post Office. He stated that on 02.06.2010 the office of the Anti-Corruption Commission seized documents at 01:00 pm and prepared the seizure list. He proved his signature on the seizure list as exhibit-6/2. The defence declined to cross-examine P.W.8. On recall, P.W.8 stated that on 02.06.2010 at 13:50 the investigating officer seized documents from Sunil Chandra and prepared a seizure list. He proved his signature in the seizure list as exhibit-9/2.

P.W. 9 Md.Khalequzzaman Bhuiyan, Postal Operator, Dhaka Sadar Post Office was tendered and declined by the prosecution.

P.W. 10 Md. Aiyub Hossain is the Superintendent (retired) at Foreign Post Office. He stated that in 2007, a five-member committee was formed to inquire as regards the realization of tax on motor vehicles headed by Deputy Post Master General P.W.2 Jesmin Akter and he was also a member of the said committee. After inquiry, the committee submitted a report on 24.09.2007. He proved the report as exhibit-5 and his signature as exhibit-5/4.

P.W. 11 Md. Fazlul Karim is the Postal Operator at the Head Post Office at Dhaka. He stated that on 19.05.2010 the investigating officer seized documents. He proved his signature on the seizure list as exhibit-8/2. The defence declined to cross-examine him.

P.W. 12 Khalequzzaman Bhuiyan is the Postal Operator at Dhaka Sadar Post Office, Dhaka. He was tendered and declined by the prosecution.

P.W. 13 Nur Hossain Khan is the Deputy Director of the Anti-Corruption Commission, Dhaka and also the Investigating Officer. He stated that after lodgment of the FIR, the Anti-Corruption Commission vide memo dated 25.04.2010 appointed him as investigating officer of the case. During the investigation, he seized the documents on 19.05.2010 from Sunil Chandra, Assistant Post Master, Dhaka based on the 02 (two) seizure list. He proved his signature on the exhibit Nos. 8 and 9. He stated that he signed the seizure list dated 19.05.2010 and 02.06.2010. After investigation, he found the prima facie truth of the allegation against the accused persons and submitted charge sheet after getting prior approval vide memo dated 17.08.2010. He denied the suggestion that accused Golam Mostafa joined on 14.04.2003, accused Abdul Latif joined on 23.03.2003 and accused Md. Alamgir joined on 14.10.2003. He stated that the occurrence took place between 24.07.2002 to 14.04.2003. He affirmed that he seized the 4 (four) tax tokens. The accused persons did not deposit the tax to the BRTA. During the inquiry, the allegation of misappropriation was proved against 7 accused persons.

Learned Advocate Mr. Ahsanul Quayyum appearing along with learned Advocate Mr. Md. Nurul Islam Chowdhury on behalf of the accused-persons submits that the occurrence took place between 24.07.2002 to 14.04.2003 and the FIR was lodged on 16.03.2010 after 7 years of the alleged occurrence and the accused-persons deposited the amount in the non-classified account before lodging the FIR in favour of the government. Therefore, no offence took place and he prayed for acquittal of the accused persons.

The learned Advocate Mr. S.M. Zahirul Islam appearing on behalf of respondent No. 2 submits that the 5 members inquiry committee was formed by the authority to inquire into the allegation as regards the misappropriation of tax on motor vehicles by making false entry and issuing false tax tokens and during the inquiry, the allegation of misappropriation

was proved against the accused persons and thereafter the said committee submitted a report (exhibit-5) and in the report (exhibit-5) submitted by the five-members committee, it has been mentioned that the accused-persons misappropriated the tax on motor vehicles by making a false entry and issuing false vouchers and false entry in the MT 22 laser and MT 70. The prosecution witnesses proved the charge beyond all reasonable doubt against the accused-persons. Therefore, he prayed for the dismissal of the appeals.

On perusal of the records, it appears that by office order dated 24.04.2007 the Additional Post Master General constituted a five-members committee headed by P.W. 2 Jesmin Akter and P.Ws. 3 to 5 and 10 are the members of the said inquiry committee. The said committee inquired as regards irregularity in the recovery of the tax on motor vehicles at Dhaka Sadar Post Office and after inquiry submitted a report. The report is proved as exhibit-5 wherein it has been mentioned that;

“উল্লেখিত অনিয়ম উদঘাটন ও আত্মসাতের পরিমাণ নির্ধারণের জন্য ঢাকা ডাকঘরে ব্যবহৃত ১০ টি এম ভি ট্যাক্স লেজারের মোট ৬২০৮ টি পাতায় যা পাওয়া গিয়েছে ০১.০৭.২০০২ থেকে ৩০.০৯.২০০৮ খ্রিঃ পর্যন্ত সময়ের প্রতিটি অন্ভুক্তির সাথে ঢাকা সদর প্রধান ডাকঘর কর্তৃক ০১.০৭.২০০২ থেকে ৩০.০৯.২০০৮ পর্যন্ত সময়ে ইস্যুকৃত মোট ৩৭ টি ট্যাক্স টোল বইয়ের ১৮০৮ টি চলতি ট্যাক্স টোকেন মুড়িতে উল্লেখিত তথ্যাদি মিলিয়ে দেখা হয়, একই সাথে যে তারিখে লেজারে আন্ভুক্তি দেয়া হয়েছে সেই তারিখের সিডিউলে আদায়কৃত টাকা হিসাবভুক্ত হয়েছে কিনা যাচাই করা হয়েছে। যাচাইকালে মোট ২১৬ টি ভুয়া অন্ভুক্তি পাওয়া যায়, যার মাধ্যমে মোট ১০,৫৫,৯৪২ (দশ লক্ষ পঞ্চগুন হাজার নয়শত বিয়াল্লিশ) টাকা আত্মসাৎ করা হয়েছে নিশ্চিতভাবে বলা যায়। যে সহকারী পোস্টমাস্টারের স্বাক্ষর

লেজারে ভূয়া অন্ভুক্তি রয়েছে তাকেই এজন্য দায়ী করা হয়েছে।
যেক্ষেত্রে স্বাক্ষর সনাক্ত করা সম্ভব হয়নি সেক্ষেত্রে স্বাক্ষরের নীচে প্রদত্ত
তারিখে কর্মরত সহকারী পোস্টমাস্টার ও অপারেটরকে দায়ী করা
হয়েছে।”

In the said report, it has been mentioned that the accused Golam Mostafa misappropriated total Tk. 7,76,253 by issuing forged tax tokens and making false entries in the ledger. Accused Alamgir misappropriated Tk. 1,639 by issuing false tax tokens and Tk. 6,434 making a false entry in the ledger book, total Tk. 8,073. Accused Abdul Latif misappropriated Tk.2,272.50 by making a false entry in the ledger.

P.W. 2 Jesmin Akhter stated that accused Mustafa misappropriated, total Tk. 7,76,253. Accused Alamgir misappropriated Tk. 8,073. Accused Abdul Latif misappropriated Tk. 2,272.50 by issuing false tax tokens and making false entries in the ledger book. As head of the enquiry committee, P.W. 2 proved the inquiry report as exhibit-5. During the trial, no cross-examination has been made by the accused persons as regards the manner of investigation and the total amount of misappropriation as mentioned in the inquiry report (exhibit-5). By cross-examining P.W. 2, the defence could make out any contradiction and discrepancy as regards the total amount misappropriated by the accused persons. It is found that the occurrence took place between 24.07.2002 to 14.04.2003. During cross-examination, P.W. 7 affirmed that before the lodgment of the FIR, the accused Golam Mostafa deposited the misappropriated amount. In the charge sheet, it has been mentioned that accused Golam Mostafa deposited total Tk. 1,98,945 by 12 vouchers, accused Md. Abdul Latif deposited total Tk. 73,814 by 03 vouchers and accused Md. Alamgir deposited Tk. 1,44,074 by 06 vouchers. By cross-examining P.W. 7, the defence affirmed that the accused persons deposited the misappropriated amount before lodging the FIR. The occurrence took place between 24.07.2002 to 14.04.2003. No evidence has

been adduced by the defence to show that the tax on motor vehicles received from the owners of the motor vehicles was deposited on the date of receipt of the tax. Subsequent deposit of the tax on motor vehicles by the accused persons proves that the recovered tax on motor vehicles was not deposited following Circular No. 26 dated 08.06.1991 issued by the Director General of Bangladesh Postal Department and thereby the accused persons committed the offence under section 5(2) of the Prevention of Corruption Act, 1947 .

In view of the above evidence, I am of the view that the prosecution proved misappropriation of Tk. 7,76,253 against the accused Golam Mostafa, Tk. 8,073 against the accused Alamgir and Tk. 2,272 against the accused Abdul Latif. Admittedly accused Golam Mostafa deposited Tk. 1,98,945 in the unclassified account between 01.11.2004 to 15.08.2006, accused Abdul Latif deposited Tk. 73,814.50 by 3 vouchers dated 29.05.2004, 19.04.2005 and 15.05.2006, accused Alamgir deposited Tk. 1,44,074.50 between 10.08.2005 to 13.06.2006 as mentioned in the seizure list dated 02.06.2010 (exhibit-6).

It appears that the accused Abdul Latif misappropriated Tk. 2,272 and accused Alamgir misappropriated Tk. 8,073 but they deposited Tk. 73,814.50 and Tk. 1,44,074.50 respectively. The trial court convicted the accused Alamgir and Abdul Latif and sentenced them to pay a fine of Tk. 50,000 and 25,000 respectively without assigning any reason. It is a settled proposition that at the time of awarding the sentence, the court shall consider the gravity of the offence. The amount misappropriated by the accused Abdul Latif and accused Alamgir is a very small amount. Therefore, I am of the view that the ends of justice would be best served if the sentence passed by the trial Court is modified as under;

The accused Golam Mostafa is found guilty of the offence under section 5(2) of the Prevention of Corruption Act, 1947 and he is sentenced

to suffer rigorous imprisonment for 01(one) year and to pay a fine of Tk. 5,77,308. The accused Alamgir is found guilty of the offence under section 5(2) of the Prevention of Corruption Act, 1947 and he is sentenced to pay a fine of Tk. 8,073. The accused Abdul Latif is found guilty of the offence under section 5(2) of the Prevention of Corruption Act, 1947 and he is sentenced to pay a fine of Tk. 2,272.50.

It is found that the accused Md. Alamgir and accused Abdul Latif already paid the excess amount than the fine imposed by this Court. Therefore, they are entitled to get back the excess amount paid by them. They are at liberty to take appropriate step for getting back the excess amount deposited by them, if so advised.

In view of the above, the appeals are disposed of with modification of the sentence.

Send down the lower Court's record at once.

